		A petition to confirm an arbitration award and notice of hearing must be served at least 10 days before the hearing. (Code Civ. Proc., §1290.2.) Because there is still no proof of service of the petition and notice of hearing on Respondents, and Petitioner has been given multiple opportunities to effectuate service, the petition is **DENIED WITHOUT PREJUDICE**. Petitioner is ordered to give notice of this ruling.
2.	**Yassine v. Intact Insurance Specialty Insurance** *2024-01433103*	The motion to compel arbitration filed by petitioner Alex Yassine (Petitioner) is **OFF CALENDAR** based on the notice of withdrawal Petitioner filed on April 14, 2025.
3.	**In re Ulises Salas** *2025-014636963*	Before the court is a petition filed by petitioner Peachtree Settlement Funding, LLC (Petitioner) for approval of the transfer of structured settlement payment rights by payee Ulises Salas (Payee). For the reasons set forth below, the petition is **CONTINUED TO MAY 15, 2025, AT 2:00 P.M. IN DEPARTMENT C23**. Through the underlying transaction Payee seeks to transfer to Petitioner 300 monthly life contingent payments of $1,274, which would start on April 24, 2036, and end March 24, 2061. These payments total $382,200 and have a present value of $118,361.69. In exchange for transferring the right to these monthly payments, Payee would receive a present payment of $24,000. Accordingly, Payee will receive 20.27 percent of the present value of this payment stream. To approve the proposed transaction, the court is required to make a number of findings to ensure, the transaction does not violate any law, and the transaction is in Payee's best interest. The court, however, is concerned it cannot make the required findings "[t]he transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." (Ins. Code. §§ 10137(a), 10139.5(a)(1).) Insurance Code section 10139.5(b) sets for the following non-exhaustive list of factors the court is to consider in evaluating a proposed transfer:

		(1) The reasonable preference and desire of the payee to complete the proposed transaction, taking into account the payee's age, mental capacity, legal knowledge, and apparent maturity level. (2) The stated purpose of the transfer. (3) The payee's financial and economic situation. (4) The terms of the transaction, including whether the payee is transferring monthly or lump sum payments or all or a portion of his or her future payments. (5) Whether, when the settlement was completed, the future periodic payments that are the subject of the proposed transfer were intended to pay for the future medical care and treatment of the payee relating to injuries sustained by the payee in the incident that was the subject of the settlement and whether the payee still needs those future payments to pay for that future care and treatment. (6) Whether, when the settlement was completed, the future periodic payments that are the subject of the proposed transfer were intended to provide for the necessary living expenses of the payee and whether the payee still needs the future structured settlement payments to pay for future necessary living expenses. (7) Whether the payee is, at the time of the proposed transfer, likely to require future medical care and treatment for the injuries that the payee sustained in connection with the incident that was the subject of the settlement and whether the payee lacks other resources, including insurance, sufficient to cover those future medical expenses. (8) Whether the payee has other means of income or support, aside from the structured settlement payments that are the subject of the proposed transfer, sufficient to meet the payee's future financial obligations for maintenance and support of the payee's dependents, specifically including, but not limited to, the payee's child support obligations, if any. The payee shall disclose to the transferee and the court his or her court-ordered child support or maintenance obligations for the court's consideration. (9) Whether the financial terms of the transaction, including the discount rate applied to determine the amount to be paid to the payee, the expenses and

		costs of the transaction for both the payee and the transferee, the size of the transaction, the available financial alternatives to the payee to achieve the payee's stated objectives, are fair and reasonable . (10) Whether the payee completed previous transactions involving the payee's structured settlement payments and the timing and size of the previous transactions and whether the payee was satisfied with any previous transaction. (11) Whether the transferee attempted previous transactions involving the payee's structured settlement payments that were denied, or that were dismissed or withdrawn prior to a decision on the merits, within the past five years. (12) Whether, to the best of the transferee's knowledge after making inquiry with the payee, the payee has attempted structured settlement payment transfer transactions with another person or entity, other than the transferee, that were denied, or which were dismissed or withdrawn prior to a decision on the merits, within the past five years. (13) Whether the payee, or his or her family or dependents, are in or are facing a hardship situation . (14) Whether the payee received independent legal or financial advice regarding the transaction. The court may deny or defer ruling on the petition for approval of a transfer of structured settlement payment rights if the court believes that the payee does not fully understand the proposed transaction and that independent legal or financial advice regarding the transaction should be obtained by the payee. (15) Any other factors or facts that the payee, the transferee, or any other interested party calls to the attention of the reviewing court or that the court determines should be considered in reviewing the transfer. The court acknowledges the payment stream to be transferred is life contingent, and would cease if Payee dies before it is completed. Nonetheless, the court is very concerned about the low percentage Payee is to receive, especially in light of Payee’s age (i.e., 39) and the lack of any information about Payee’s health or life expectancy (other than he received disability payments).

		Moreover, the petition reveals a prior transaction transferring some of Payee's payment rights was approved less than a year ago—i.e., on July 24, 2024—and Payee received $115,000 in connection with that transfer. Payee's declaration in support of that petition stated Payee intended to use that money "to make a long-term plan for myself and my family. I have a baby due soon with my fiancé, who I want to marry to this year. In addition, I intend to use the money to move and purchase a reliable vehicle." (See ROA 11, Ex. 4 to prior petition.) The current petition makes no mention of a fiancé or baby and offers no discussion of how the $115,000 was used in comparison to its proffered intended use. The prior petition and supporting documents also made no mention of the SSI payments Payee now says he was receiving, but have been stopped. There also is no evidence offered as to whether Payee is likely to require future medical care and treatment for the injuries that were the subject of the settlement and what resources are available to cover those expenses. (See Ins. Code § 10139.5(b)(7).) Based on the foregoing, the current record does not appear sufficient to support a finding the transfer is fair and reasonable, and in the best interest of the payee. The court thus will **CONTINUE** the hearing as stated above to allow Petitioner an opportunity to submit additional evidence to address the foregoing concerns. Any additional evidence is due at least 9 court days prior to the hearing. Counsel for Petitioner is ordered to give notice of this ruling.
4.	**Fernhill Owners Community Association No. 1 v. Garra** *2019-01069232*	Before the court is the motion for attorney fees and costs on appeal filed by plaintiff Fernhill Owners Community Association No. 1 (Plaintiff). The motion is **GRANTED** as set forth below. Plaintiff is entitled to fees on appeal pursuant to Civil Code section 5975, subdivision (c), which states "[i]n an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs." Here, as the court already recognized when it granted Plaintiff's initial fee motion, the action sought to enforce the Association's governing documents. Plaintiff also is